

WEST YORKSHIRE POLICE — MAJOR INVESTIGATION TEAM

RECORD OF TAPED INTERVIEW

Police and Criminal Evidence Act 1984, Code C / Code E

Person interviewed	Aldwyn Sinclair FERRIS, d.o.b. 08.04.1968, Construction Director, Meridian Structures Limited
Interview reference	MIT/1174/ASF/02 (second interview)
Place	Elland Road Police Station, Interview Room 4
Date / time	9 October 2024. Commenced 11:02. Concluded 13:26. Two breaks (11:58-12:14; 12:55-13:01).
Status	Voluntary attendance. Not under arrest. Free to leave at any time.
Officers present	DI S. Achterberg; DC L. Mbeki-Farnworth; HM Inspector K. Ormerod-Suss (observing, questions put through DI Achterberg)
Legal representative	Mr Quentin Marchetti-Rowe, solicitor-advocate, Halloway Brant LLP
Caution	Administered at 11:03 and repeated after each break.
Note	This is an abridged record. The full record of taped interview and the audio master are available. Passages omitted are marked [...]

Prior to interview, Mr Marchetti-Rowe handed in a prepared written statement on behalf of Mr Ferris, which is reproduced at Part A below. Mr Ferris then answered some questions and declined to answer others on legal advice.

PART A — PREPARED STATEMENT (read into the record at 11:06)

“I am the Construction Director of Meridian Structures Limited. My role is strategic. I am responsible for resourcing, commercial delivery and client relationships across the division. I am not responsible for day-to-day site operations, which are the responsibility of site management. I had no operational role at Brackenmoor Wharf. I was not on the Brackenmoor Wharf site at any time in November 2023. I did not know that any ties were missing from the scaffold. I did not know of any defect in loading bay LB-7. I did not instruct anyone to load that bay. I did not create, alter, backdate or procure the creation of any document. The death of Mr Wieczorek is a tragedy and the company has co-operated fully with the investigation. I do not intend to answer further questions on legal advice, save as my solicitor may advise during the interview.”

PART B — INTERVIEW

DI ACHTERBERG	Mr Ferris, you say you had no operational role. Can I ask you about a message in a WhatsApp group called ‘BW SITE LEADS’. On 13 November 2023 at 20:03 you wrote: ‘Whatever it takes. Milestone 6 must certify by Friday or we’re funding it ourselves.’ What did you mean?
FERRIS	I meant what it says. It is a commercial message. Milestone 6 was worth six hundred and ten thousand pounds. If we did not certify it we would be carrying the cost through Christmas. That is my job. That is exactly the kind of thing a construction director says.
DI ACHTERBERG	‘Whatever it takes’ is quite a strong phrase.
FERRIS	It is a figure of speech. If I had meant ‘break the law’ I would not have typed it into a group chat with a health and safety officer in it.
DI ACHTERBERG	Was Ms Kettleborough in that group?
FERRIS	I believe so, yes.
DI ACHTERBERG	The forensic report says she was added to the group on 14 November 2023 at 07:55. She was not in the group at 20:03 the night before.
MARCHETTI-ROWE	My client is not obliged to comment on the accuracy of a forensic report he has not seen.
FERRIS	No comment.
[...]	
DI ACHTERBERG	You say you were not on site in November 2023. The site access system records a visitor badge issued to ‘A. FERRIS’ at 09:34 on 14 November 2023, returned at 12:05.
FERRIS	That badge is issued in my name as a matter of course. My driver, Mr Kadeem Olusanya-Reid, holds it. He collects and delivers documents. If the badge was issued, he was there, not me.
DI ACHTERBERG	Has Mr Olusanya-Reid confirmed that?
FERRIS	You would have to ask him.

DC MBEKI-FARNWORTH	Mr Olusanya-Reid left the company on 31 January 2024 and we have been unable to trace him. Do you know where he is?
FERRIS	No comment.
[...]	
DI ACHTERBERG	I am showing you exhibit SA/17. It is a photograph file, IMG_4471, recovered from Meridian's shared drive. The embedded data records that it was taken on 14 November 2023 at 09:58 at coordinates that place it inside the Brackenmoor Wharf site. The device is recorded as 'Ferris iPhone 14 Pro'.
FERRIS	That is not my photograph.
DI ACHTERBERG	The device name is your name.
FERRIS	People send me things and I forward them. If a photograph came to my phone and I put it on the drive, the phone details may attach. I am not a technical person.
DI ACHTERBERG	Where were you at 09:58 on 14 November 2023?
FERRIS	I was in Manchester. I stayed at the Radisson. I checked out at eleven.
DI ACHTERBERG	The hotel invoice shows a checkout at 11:00 and a room charge for the night of 13 to 14 November. It does not show where you were at 09:58. Manchester to Hunslet is about fifty minutes.
FERRIS	Then I was in Manchester at ten to ten and could not have been in Leeds at eight minutes to ten. That is your arithmetic, not mine.
MARCHETTI-ROWE	I would like a note that my client has now answered a question he was advised not to answer.
[...]	
DI ACHTERBERG	Your mobile telephone was seized on 22 November 2023. It had been restored to factory settings.
FERRIS	I upgraded my phone.
DI ACHTERBERG	The trade-in receipt your solicitors provided is dated 29 November 2023, a week after the seizure.
FERRIS	I wiped the old one before I traded it in. That is what you are supposed to do.
DI ACHTERBERG	You wiped it on 22 November, the day it was seized under a warrant, and traded it in on 29 November.
FERRIS	I do not accept that I wiped it on the day it was seized. I do not remember the date.
DI ACHTERBERG	The device log records the reset at 06:12 on 22 November 2023. The warrant was executed at 07:40.
FERRIS	No comment.
[...]	
DI ACHTERBERG	Did you ask Ms Kettleborough on 21 November 2023 to 'go through the files and make sure everything is tidy before the inspector comes back'?
FERRIS	I may have said something like that. It means make sure the files are complete. It does not mean destroy anything and she has not suggested it did.
DI ACHTERBERG	Did you know before 14 November 2023 that the design check certificate for LB-7 did not exist?
FERRIS	No comment.
DI ACHTERBERG	Did you know that the safe working load on the certificate, two tonnes, did not match the drawing?
FERRIS	No comment.
DI ACHTERBERG	Why did Ms Raghunathan lose her job three weeks after she emailed you saying the certificate appeared to have been created after the collapse?
FERRIS	That was a redundancy decided by the board on 2 November, before any of this. It is a coincidence and a very unfortunate one.
DI ACHTERBERG	The minute of the meeting of 2 November 2023 refers to 'the Brackenmoor incident review'.
FERRIS	I have not seen the minute recently.
DI ACHTERBERG	You are recorded as chairing that meeting.
FERRIS	No comment.
DI ACHTERBERG	Is there anything you wish to add?
FERRIS	Only that a man died and I am sorry for it, and that I did not cause it.

Interview concluded 13:26. Mr Ferris was released without charge, no further action pending a charging decision by the Crown Prosecution Service. He was reminded that a court may draw such inferences as appear proper from his failure to mention when questioned any fact later relied on in his defence (s.34, Criminal Justice and Public Order Act 1994).

Solicitor's note appended at 13:31: "Mr Ferris has answered questions where able. He declined to answer certain questions on my advice because disclosure by the investigating authorities has been inadequate: in particular no copy of the forensic

extraction report, the access control data or the photograph metadata had been provided in advance of interview, despite written request dated 26 September 2024. I invite the court to have regard to *R v Argent* and *R v Howell* and to the guidance on legal advice as a reason for silence.” — Q. Marchetti-Rowe.